

**AMENDMENT TO THE
WELLPOINT WASHINGTON, INC.
PROVIDER AGREEMENT**

This is a unilateral Amendment ("Amendment") pursuant to section 9.1 of the Wellpoint Washinton Inc. Provider Agreement ("Agreement") by and between Wellpoint Washington, Inc., (hereinafter referred to as "Wellpoint") and Provider and is incorporated into the Agreement as follows:

RECITALS:

- A. Wellpoint and Provider are parties to that certain Agreement, as amended from time to time.
- B. Wellpoint is amending the Agreement as set forth herein.
- C. The parties agree that the Wellpoint Rate as defined in the Agreement shall hereinafter include the applicable Plan Compensation Schedule Attachment.

NETWORKS/PRODUCTS/PLAN PROGRAMS

- 1. The following network/product/Plan Program(s) are hereby added to the Agreement:

Commercial Programs:

Health Benefit Plans, including those Networks and products offered through or outside of Exchanges, in which Commercial Business Members have access to a network of providers and receive an enhanced level of benefits when they obtain Covered Services from Participating Providers regardless of product licensure status or funding source. Provider participates in one or more of the following Networks which support such Health Benefit Plans:

- Wellpoint Washington Essential

ATTACHMENTS

- 2. The Commercial Business Participation Attachment, attached hereto, is hereby added to and incorporated into the Agreement.

PCS ATTACHMENT

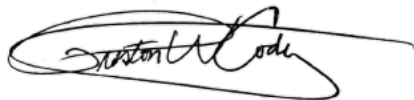
- 3. The Wellpoint Washington Essential Plan Compensation Schedule ("PCS") Attachment attached hereto is hereby added to the Agreement.

Except as expressly set forth herein, nothing contained herein shall be construed to modify the Agreement. To the extent this Amendment conflicts with any provision of the Agreement, this Amendment shall control.

Wellpoint warrants that it has full power and authority to enter into this Amendment and the person signing this Amendment on behalf of Wellpoint warrants that he/she has been duly authorized and empowered to enter into this Amendment.

THE EFFECTIVE DATE OF THIS AMENDMENT IS: 01/01/2026

Wellpoint Washington, Inc.



By:	_____ Signature, Authorized Representative of Wellpoint	04/07/2025 _____ Date
Printed:	Preston W. Cody _____ Name	Director Provider Solutions _____ Title
Address	705 5 th Ave S., Ste 300 _____ Street	Seattle WA 98104 _____ City State Zip

**COMMERCIAL BUSINESS
PARTICIPATION ATTACHMENT TO THE
WELLPOINT
PROVIDER AGREEMENT**

This is a Commercial Business Participation Attachment ("Attachment") to the Wellpoint Provider Agreement ("Agreement"), entered into by and between Wellpoint and Provider and is incorporated into the Agreement.

**ARTICLE I
DEFINITIONS**

The following definitions shall apply to this Attachment. Terms not otherwise defined in this Attachment shall carry the meaning set forth in the Agreement.

"Commercial Business" means certain Health Benefit Plans, including individual and employer groups, partially or wholly insured or administered by Plan, under which Members have access to a network of providers and receive an enhanced level of benefits when they obtain Covered Services from Participating Providers. Commercial Business does not include Government Programs as defined in the Agreement but does include the FEHBP as well as state and local government employer programs.

"Commercial Business Covered Services" means, for purposes of this Attachment, only those Covered Services provided under Plan's Commercial Business products.

"Commercial Business Member" means, for purposes of this Attachment, a Member who is covered under one of Plan's Commercial Business products.

"Complete Claim" means, unless applicable law otherwise requires, an accurate Claim submitted pursuant to this Agreement, for which all information necessary to process such Claim and make a benefit determination is included.

"Emergency Condition" means, for purposes of this Attachment, a medical condition of recent onset and sufficient severity, including but not limited to, severe pain, that would lead a prudent layperson possessing average knowledge of medicine and health, to believe that his or her condition, sickness or injury is of such a nature that failure to obtain immediate medical care could result in: (1) placing the Member's health in serious jeopardy; (2) serious impairment to bodily functions; (3) serious dysfunction to any bodily organ or part; or (4) other serious medical consequences.

"Medically Necessary" or "Medical Necessity" means the definition set forth in the Health Benefit Plan, unless a different definition is required by Regulatory Requirements.

**ARTICLE II
SERVICES/OBLIGATIONS**

2.1 Participation-Networks Supporting Commercial Business. As a participant in one or more Networks supporting Plan's Commercial Business as set forth on the Provider Networks Attachment of the Agreement, Provider will render Commercial Business Covered Services to Commercial Business Members in accordance with the terms and conditions of the Agreement and this Attachment. Except as set forth in this Attachment, or the PCS, all terms and conditions of the Agreement will apply to Provider's participation in Networks supporting Plan's Commercial Business. The terms and conditions set forth in this Attachment are limited to the provision of and payment for Health Services provided to Commercial Business Members.

2.1.1 Provider agrees to participate in Wellpoint's exchange network(s) set forth on the Provider Networks Attachment, which may support both products or programs offered by Wellpoint through state-based, regional or federal health insurance exchanges ("Exchanges") established by the Patient Protection and Affordable Care Act and products or programs offered by Wellpoint outside of Exchanges. Provider acknowledges and understands that products or programs offered through or outside of the Exchanges may differ, and that such products or programs are subject to Regulatory Requirements. Provider agrees to abide by all Regulatory Requirements of the Exchanges as they exist and as they may be amended or changed from time to time. Should Wellpoint change the name of the exchange network(s) set forth on the Provider Networks Attachment, it shall notify Provider. Wellpoint is the carrier comprising the provider panel for the Plan's Commercial Business.

- 2.1.2 Provider has the right to elect not to serve on a provider panel for workers' compensation services.
- 2.2 Plan Responsibilities. No health carrier subject to the jurisdiction of the state of Washington may in any way preclude or discourage their providers from informing patients of the care they require, including various treatment options, and whether in their view such care is consistent with medical necessity, medical appropriateness, or otherwise covered by the patient's service agreement with the health carrier. No health carrier may prohibit, discourage, or penalize a provider otherwise practicing in compliance with the law from advocating on behalf of a patient with a health carrier. Nothing in this section shall be construed to authorize providers to bind health carriers to pay for any service. No health carrier may preclude or discourage patients or those paying for their coverage from discussing the comparative merits of different health carriers with their providers. This prohibition specifically includes prohibiting or limiting providers participating in those discussions even if critical of a carrier.
- 2.3 Submission and Adjudication of Commercial Business Claims. Unless otherwise instructed, or required by Regulatory Requirements, Provider shall submit Claims to Plan, using appropriate and current Coded Service Identifier(s), within ninety (90) days from the date the Health Services are rendered or Plan will refuse payment. If Plan is the secondary payor, the ninety (90) day period will not begin until Provider receives notification of primary payor's responsibility.
- 2.3.1 Provider agrees to provide to Wellpoint, unless otherwise instructed, at no cost to Wellpoint, Plan or the Commercial Business Member, all information necessary for Plan to determine its payment liability. Such information includes, without limitation, accurate and Complete Claims for Commercial Business Covered Services. Once Wellpoint determines Plan has any payment liability, all Complete Claims will be paid in accordance with the terms and conditions of the Agreement, a Commercial Business Member's Health Benefit Plan, the PCS, and the provider manual(s).
- 2.3.2 Provider agrees to submit Claims and applicable attachments to the Claims in an electronic format consistent with industry standards and as set forth in the provider manual(s), unless otherwise mandated by applicable Regulatory Requirements.
- 2.3.3 If Wellpoint or Plan asks for additional information so that Plan may process a Claim, Provider must provide that information within forty-five (45) working days after the date of the request for additional information. If Wellpoint or Plan denies a Claim in whole or in part, Provider may appeal that determination within forty-five (45) working days after the date of the denial.
- 2.3.4 In no event, shall Provider bill, collect, or attempt to collect payment from the Commercial Business Member for Claims Plan receives after the applicable period(s) as set forth in section 2.3 above, regardless of whether Plan pays such Claims.
- 2.3.5 In all events, however, Provider shall only look for payment (except for applicable Cost Shares or other obligations of Commercial Business Members) from the Plan that provides the Health Benefit Plan for the Commercial Business Member for Commercial Business Covered Services rendered to the Commercial Business Member.
- 2.3.6 Provider shall not, under any circumstances, including nonpayment of money due Provider by the Plan, insolvency of the Plan, or breach of the Agreement, bill, charge, collect a deposit, seek compensation, remuneration, or reimbursement from, or have any recourse against Commercial Business Members, or any persons other than the Plan acting on their behalf, for services provided in accordance with the Agreement. This Section 2.3.6 shall not apply to collection from the Commercial Business Members of copayments or supplemental charges in accordance with the terms of the Commercial Business Members' contract with the Plan, or to charges for services that are not Covered Services.
- 2.3.7 Wellpoint shall meet the timeliness of payment standards specified for health carriers in WAC 284-170-431. Wellpoint shall pay ninety-five percent (95%) of the monthly volume of Clean Claims within thirty (30) calendar days of receipt and shall pay or deny ninety-five percent (95%) of the monthly volume of all Claims within sixty (60) days of receipt. Notwithstanding the foregoing, Wellpoint and Provider may agree to a different payment requirement in writing on a claim by claim basis.
- 2.3.8 Wellpoint shall pay Provider interest at the rate of one percent (1%) per month, as set forth in WAC 284-170-431(2)(d) which section may be amended or recodified from time to time, on the unpaid or

undenied portion of Clean Claims not adjudicated within the time periods discussed above, as required under applicable prompt pay requirements.

- 2.4 Plan Payment Time Frames. Wellpoint shall require Plans or their designees shall use commercial reasonable efforts to adjudicate or arrange for adjudication for all Complete Claims for Commercial Business Covered Services submitted by Provider, in accordance with and to the extent applicable under Washington Administrative Code § 284-170-431 and 284-51-215, exclusive of Claims that have been suspended due to a need to determine Medical Necessity, or the extent of Wellpoint's payment liability, if any, because of issues such as coordination or nonduplication of benefits, subrogation, verification of coverage or eligibility for coverage.

2.4.1 Telemedicine reimbursement. If Provider is a telemedicine provider, in accordance with Regulatory Requirements:

2.4.1.1 Provider must obtain the Commercial Business Member's consent for billing in advance of the Commercial Business Covered Service being delivered consistent with requirements in WAC 284-170-433(6), if Provider intends to bill the Plan for audio-only telemedicine services, as defined in RCW 48.43.734(a)(i), and;

2.4.1.2 For audio-only telemedicine services, as defined in RCW 48.43.734(a)(i), Provider must have an established relationship, as defined in RCW 48.43.735(9)(d), with the Commercial Business Member.

2.4.2 Wellpoint will reimburse Provider for a Commercial Business Covered Service provided to a Commercial Business Member through telemedicine or store and forward technology if:

- (a) The Health Service is a Commercial Business Covered Service when provided in person by Provider;
- (b) The Commercial Business Covered Service is Medically Necessary;
- (c) The Commercial Business Covered Service is a service recognized as an essential health benefit under section 1302(b) of the federal Patient Protection and Affordable Care Act in effect on January 1, 2015, RCW 48.43.005 and 48.43.715; and,
- (d) The Commercial Business Covered Service is determined to be safely and effectively provided through telemedicine or store and forward technology according to generally accepted health care practices and standards, and the technology used to provide the Commercial Business Covered Service meets the standards required by state and federal laws governing the privacy and security of protected health information.

2.4.3 In accordance with subsection 2.4.2 above, reimbursement of store and forward technology is available only for those Commercial Business Covered Services specified in the negotiated agreement between the Plan and the Provider. Coverage of a telemedicine or store and forward technology Commercial Business Covered Services of this section are subject to all terms and conditions of the Health Benefit Plan in which the covered person is enrolled including, but not limited to, utilization review, prior authorization, deductible, copayment, or coinsurance requirements that are applicable to coverage of a comparable Covered Service provided in person.

2.4.4 In accordance with subsection 2.4.2 above, Wellpoint will reimburse Provider for a Commercial Business Covered Service provided to a Commercial Business Member through telemedicine as provided by Washington law, the same amount of compensation Wellpoint would pay Provider under this Attachment, if the Commercial Business Covered Service was provided in person by Provider.

2.4.5 An originating site for a telemedicine Health Service subject to subsection 2.4.2 above includes a:

- (a) Hospital;
- (b) Rural Health Clinic;
- (c) Federally Qualified Health Center;

- (d) Physician's or other provider's office;
- (e) Licensed or Certified Behavioral Health Agency;
- (f) Skilled Nursing Facility;
- (g) Home or any location determined by the individual receiving the service including, but not limited to, a pharmacy licensed under Chapter 18.64 RCW or a school-based health center as defined in RCW 43.70.825. If the site chosen by the individual receiving service is in a state other than the state of Washington, a provider's ability to conduct a telemedicine encounter in that state is determined by the licensure status of the provider and the provider licensure laws of the other state; or
- (h) Renal dialysis center, except an independent renal dialysis center.

2.4.6 Provider shall ensure that access to telemedicine Commercial Business Covered Services is inclusive for Commercial Business Members who may have disabilities or limited English proficiency and for whom the use of telemedicine technology may be more challenging, in accordance with Regulatory Requirements.

2.5 Out of Network Referrals and Transfers. In addition to the Cost Effective Care provision in the Agreement, Provider may refer or transfer a Commercial Business Member to a non-Participating Provider after obtaining a written acknowledgement (e.g. written waiver form) from the Commercial Business Member, prior to the provision of the service, indicating that: (1) the Commercial Business Member was advised that no coverage, or only out-of-network coverage would be available from Wellpoint; and (2) the Commercial Business Member agreed to be financially responsible for additional costs related to such service.

2.6 Pass-Through Charges. Provider agrees not to pass through to Plan or the Commercial Business Member any charges which Provider incurs as a result of providing supplies or making referrals to another provider or entity. Examples include, but are not limited to, pass-through charges associated with laboratory services, pathology services, radiology services and durable medical equipment. If Wellpoint has a direct contract with the subcontractor, the direct contract shall prevail over the Agreement.

2.7 Plan and Commercial Business Member Access. Only Plans administering Commercial Business and Commercial Business Members may access the terms and conditions of this Attachment and the Commercial Business rates set forth in the PCS.

2.8 Commercial Business Member Grievances. Provider and Wellpoint shall cooperate in all grievance proceedings of Commercial Business Members as established by Wellpoint and approved by the Washington State Office of the Insurance Commissioner.

2.9 Group Practice Services.

2.9.1 Notwithstanding anything in Section 2.5 of the Agreement, a group practice that is a Participating Provider under a Plan shall be reimbursed at the applicable Wellpoint Rate for Covered Services provided by a provider that is not a participating provider if (a) the provider that is not a participating provider is employed by or a member of the group practice; (b) the provider that is not a participating provider has applied for acceptance as a participating provider with Wellpoint or the applicable Plan and the Plan or Wellpoint has notified the provider that is not a participating provider of the carrier's intent to continue to process the provider's application to obtain necessary credentialing information; (c) the provider that is not a participating provider has a valid license issued by a health occupations board to practice in Washington; and (d) the provider that is not a participating provider is currently credentialed by an accredited hospital in Washington or has professional liability insurance. If Wellpoint or the applicable Plan sends written notice of rejection of a provider for credentialing, such nonparticipating provider shall be reimbursed as a nonparticipating provider for Covered Services provided on and after the date the notice is sent.

2.9.2 Notwithstanding anything in the Agreement to the contrary, a provider that provides Health Services through a group practice or health care facility that participates in a Plan shall not be considered a Participating Provider of such Plan or required to accept the applicable fee schedule for such Plan

under the group practice or health care facility's provider agreement with the Plan when (a) the provider is providing Health Services to a Commercial Business Member through an individual or group practice or health care facility that is not a Participating Provider under such Plan; and (2) the provider bills for such Health Services provided to a Commercial Business Member using a different federal tax identification number than that used by the group practice or health care facility.

- 2.10 Provider Credentialing, Standards of Participation and Accreditation. Provider warrants that he/she/it meets all applicable Plan credentialing requirements, standards of participation, and accreditation requirements for the Networks in which Provider participates. A description of the applicable credentialing requirements, standards of participation, and accreditation requirements, are set forth in the provider manual(s) and/or in the PCS. In accordance with RCW 48.43.757, Plan will reimburse new providers rendering Commercial Business Covered Services to Commercial Business Members added to this Agreement after the effective date of the Commercial Participation Attachment to this Agreement as of the date the credentialing application is complete as determined by the Plan. Plan will not reimburse Provider for Commercial Business Covered Services rendered to Commercial Business Members if the new provider's credentialing application is not approved, or if the new provider is not added to the Agreement.
- 2.11 Prior Authorization Requests. A description of the applicable Utilization Management requirements are set forth in the Provider Manual. This section includes detailed explanations of the information that can be requested from Provider during Plan's evaluation of clinical information for the purpose of making a favorable determination or adverse determination as to the appropriateness of care.
- 2.12 Compliance with Plan Medical Management Programs. Provider agrees to comply with Plan's medical policies, quality improvement and performance improvement programs, and medical management programs to the extent provided to or otherwise made available to Provider in advance and as further outlined in the Provider Manual.
- 2.13 Data Reporting Requirements. Provider shall provide to Plan all information necessary for or requested by Plan to enable Plan to meet its data reporting and submission obligations to CMS or the State, including but not limited to, data necessary to characterize the context and purpose of each encounter between a Commercial Business Member and Provider ("Risk Adjustment Data") or under any subsequent or additional regulatory provisions or CMS guidance. In accordance with CMS Regulatory Requirements, Plan reserves the right to assess Provider for any penalties resulting from Provider's submission of false data.

ARTICLE III TERMINATION

- 3.1 Termination. Commercial Business Attachment and/or Network(s).
- 3.1.1 At any time either party may terminate, without cause, Provider's participation in one or more Commercial Network(s) designated on the Provider Networks Attachment, or this Attachment by giving at least sixty (60) days prior written notice of termination to the other party. Following any termination as described herein, the remainder of the Agreement shall remain in full force and effect, if applicable. Wellpoint will make a good faith effort to notify all Members prior to termination of this Agreement in accordance with WAC 284-170-421(9) & (10).
- 3.1.2 Notwithstanding anything in the Agreement to the contrary, Wellpoint shall provide Provider with at least sixty (60) days prior notice of termination of Provider's participation in one or more Commercial Network(s) if such termination is for reasons unrelated to fraud, patient abuse, incompetency, or loss of licensure status.
- 3.2 Continuation of Care Upon Termination - Commercial Business Members.
- 3.2.1 If Provider elects to terminate the Agreement or Provider's participation in a Commercial Network, Provider shall provide at least sixty (60) days written notice of such termination to Wellpoint and shall, for at least sixty (60) days after providing notice of such termination, continue to provide Commercial Business Covered Services to a Commercial Business Member for whom Provider was responsible for the delivery of health care services before the notice of termination was provided. Provider agrees to: (i) accept reimbursement from Wellpoint for all Covered Services furnished hereunder in accordance with this Agreement and at the rates set forth in the PCS attached to this Agreement;

and (ii) adhere to Wellpoint's Policies, including but not limited to, Policies regarding quality assurance requirements, referrals, pre-authorization and treatment planning.

- 3.3 Survival. The provisions of this Attachment set forth below shall survive termination or expiration of the Agreement:
- 3.3.1 Any provisions required in order to comply with Regulatory Requirements; and
 - 3.3.2 Maintenance and Access to Commercial Business Members Records; and
 - 3.3.3 Continuation of Care Upon Termination - Commercial Business Members; and
 - 3.3.4 The hold harmless provisions in section 2.3 of the Agreement shall survive termination of the Agreement or this Attachment regardless of the cause of the termination.
- 3.4 Effect of Termination. Following termination of this Attachment, the remainder of the Agreement shall continue in full force and effect, if applicable.

ARTICLE IV GENERAL PROVISIONS

- 4.1 Inconsistencies. In the event of an inconsistency between terms of this Attachment and the terms and conditions as set forth in the Agreement, the terms and conditions of this Attachment shall govern. Except as set forth herein, all other terms and conditions of the Agreement remain in full force and effect.
- 4.2 Governing Law. For avoidance of doubt and notwithstanding language in section 9.8 of the Agreement, this Attachment shall be governed and interpreted under Washington law.

ARTICLE V SPECIFIC PROVISIONS

The Office of the Insurance Commissioner requires that certain language, already required by Washington law and regulations, be specifically articulated in this Amendment. In compliance with this Regulatory Requirement, the Parties agree to the following provisions or make reference to specific provisions agreed-upon and set forth elsewhere in the Agreement or in this Amendment.

- 5.1 Administrative Policies. As required by RCW 48.43.505 and WAC 284-170-421(5), the Agreement describes the responsibilities of Provider regarding the following policies and programs:
- 5.1.1 Payment terms are described in the PCS Attachment.
 - 5.1.2 Utilization review is described in §2.5 of the Agreement
 - 5.1.3 Quality Assessment is described §2.11 of the Amendment
 - 5.1.4 Credentialing is described in §2.13 of the Agreement
 - 5.1.5 Grievance, appeal, and adverse determination procedures are described in Article VII of the Agreement
 - 5.1.6 Data reporting requirements are described in §2.13 of the Amendment
 - 5.1.7 Pharmacy benefit substitution is not applicable thus is not included.
 - 5.1.8 Confidentiality requirements are described in Article III of the Agreement
 - 5.1.9 Federal and state regulations are described in §9.7 of the Agreement
- 5.2 Audit Guidelines. As required WAC 284-170-460, nothing in the Agreement grants Wellpoint access to health information unrelated to its Commercial Business Members. §3.4 of the Agreement limits access to medical

records, for audit purposes, to such information necessary to perform an audit. To the extent the Agreement permits Wellpoint to audit Provider claims relevant to the Provider's rendered services, Provider has the right to audit Wellpoint claims relevant to the Provider's rendered services.

- 5.3 Clean Claims. (a) As required by WAC 284-170-431, this Amendment describes the standards regarding the prompt payment of Clean Claims in §2.3.7 and §2.3.8.

(b) As required by WAC 284-170-431 and WAC 284-51-215, in §2.17 of the Agreement, Provider agrees to cooperate with Wellpoint regarding coordination of benefits. Time limits for the submission of Clean Claims are described in §2.3 of this Amendment. Wellpoint will not unreasonably delay payment due to coordination of benefits.

- 5.4 Compensation Notification. (a) As required by WAC 284-170-421(6), the Agreement establishes at §2.9 and §9.1.2 that Provider will receive notice of not less than 60 days of changes that affect compensation or health care service delivery.

(b) As required by WAC 284-170-421(6), the Agreement establishes at §9.1.2 that Provider may terminate the Agreement rather than agreeing to unacceptable terms, and further establishes the notice required to Wellpoint prior to any such termination by Provider.

- 5.5 Conducting Business in Licensed Name. As required by RCW 48.05.190, RCW 48.30.050, and RCW 48.44.040, all Parties to this Agreement have been identified in the introductory paragraphs to the Agreement and this Amendment.

- 5.6 Contracting Outside Health Care Plan. The Agreement complies with the requirements of RCW 48.43.085.

- 5.7 Contract Termination.

5.7.1 As required by WAC 284-170-421(9)-(10), this Amendment, at §3.1.1, articulates the notice requirements for a Party to terminate the Agreement without cause. The Agreement contains no conflicting language with the notice requirements of WAC 284-170-421(9)-(10).

5.7.2 As required by RCW 48.43.515(7), this Amendment §3.2.1 articulates the terms and conditions regarding continuity of care.

- 5.8 Member Coverage. As required by WAC 284-170-421(11), the Agreement §2.2 instructs Provider to furnish services to Members without regard to whether Member was a private purchaser of as a participant in a publicly funded program.

- 5.9 Member Eligibility Notification. As required by 48.43.525, WAC 284-170-421(1)-(2), and WAC 284-43-3070(1)(b), Provider shall establish a Commercial Business Member's eligibility for Covered Services prior to rendering services, except in the case of an Emergency Condition, as defined in the PCS, where such verification may not be possible. In the case of an Emergency Condition, Provider shall establish a Commercial Business Member's eligibility as soon as reasonably practical. Plan shall provide a system for Providers to contact Plan to verify a Commercial Business Member's eligibility twenty-four (24) hours a day, seven (7) days per week. Nothing contained in this Amendment or the Agreement shall, or shall be construed to, require advance notice, coverage verification, or pre-authorization for Emergency Services, as defined in the PCS, provided in accordance with the federal Emergency Medical Treatment and Labor Act ("EMTALA") prior to Provider's rendering such Emergency Services.

- 5.10 Grievance Procedures.

(a) As required by RCW 48.43.055, WAC 284-170-421(13), and WAC 284-170-440, the Agreement describes, in Article VII, the procedures for review and adjudication of complaints arising out of the Agreement.

5.10.1 The formal dispute resolution process is described in Article VII of the Agreement.

5.10.2 As described in §7.3.3 of the Agreement, Wellpoint must allow not less than thirty (30) days after the action giving rise to a dispute for providers to complain and initiate the dispute resolution process.

5.10.3 All likely disputes are covered by Article VII of the Agreement.

5.10.4 Article VII does not unfairly give advantage to Wellpoint.

5.10.5 Article VII of the Agreement does not exclude judicial remedies.

5.10.6 Per §7.3.5 of the Agreement, billing disputes will be resolved within 60 days.

(b) As described in §7.2.1 of the Agreement, if Wellpoint fails to grant or reject a request for dispute resolution within thirty (30) days, the matter may be considered to be rejected and Provider may submit the matter to non-binding mediation.

- 5.11 Hold Harmless and Insolvency. As required by WAC 284-170-421(3), §2.6.2 of the Agreement includes the language regarding holding Members harmless, and the required language regarding insolvency.

As required by RCW 48.44.020(4)(a), all terms and conditions of the Agreement are in writing and §2.3.6 of this Amendment and §2.6.2 of the Agreement declare that a failure to pay, by Wellpoint, for services rendered to Member by Provider, will not result in Member's liability to Provider for the sums owed by Wellpoint. §2.6.2 of the Agreement informs Provider that collecting from an enrollee in violation of this Agreement is a class C felony.

As required by RCW 48.80.030(5)-(6) and WAC 284-170-421(a), this Amendment §3.3.4 states that the hold harmless language of §2.3 of the Agreement shall survive the termination of this Agreement.

- 5.12 Mental/Behavioral Health Providers. As required by RCW 48.43.087(2)-(3), the Agreement at §2.6.2 does not prevent the Provider from agreeing with the Member to have services provided at the Member's expense when the Member's mental health care coverage is exhausted, during the appeal and adverse certification process, or for any other clinically appropriate reason at any time. If Provider is a mental health care practitioner and provides Health Services to a Commercial Member during an appeal or adverse certification process, the Provider must provide to the Member written notification that the Member is responsible for the payment of these Health Services, unless Wellpoint elects to pay for the Health Services provided.

- 5.13 Military Service. The Agreement contains no language that would violate the provisions of WAC 284-170-390, regarding a Provider that leaves the network due to active-duty military service.

- 5.14 Network Name. As required by RCW 48.43.730(7), RCW 48.49.070, RCW 48.49.080, and WAC 284-170-480(7), at §2.11 of the Agreement, and in the Provider Networks Attachment, and §1 and 2.1 of this Amendment, the name of Wellpoint's networks are described in a manner that a Provider can understand, regarding both participation in the network by Provider as well as reimbursement to be paid to provider by Wellpoint. Any reasonable person can understand this language and the Parties believe it is acceptable to the Office of the Insurance Commissioner.

- 5.15 Non-Covered Services; Health Care Services. As required by RCW 48.43.016(5), the Agreement does not require a Provider to take a discount from usual and customary services. Article IV of this Amendment only reimburses Providers for Covered Services

- 5.16 Notice of Material Changes. §9.1.2 of the Agreement establishes that any amendment to the Agreement requires sixty (60) days notice to Provider and allows the Provider to reject the change without affecting the terms of the Agreement.

- 5.17 Opiate Overdose Reversal Rx. The Agreement does not prohibit Providers from prescribing pre-packaged emergency medicines as outlined in RCW 70.41.480. Further, the Agreement does not contain any language that would restrict the Provider from prescribing opiate overdose reversal medication.

- 5.18 Overpayment Recovery. The Agreement articulates Wellpoints procedures for overpayment recovery.

5.18.1 As required by RCW 48.43.600, §2.7.3 of the Agreement prohibits Wellpoint from requesting a refund from Provider unless it is done in writing and within 24 months after payment was made by Wellpoint. Additionally, §2.7.4 indicates when coordination of benefits is involved, Wellpoint must request a refund of a previously paid claim within 30 months after payment was made by Wellpoint. If a request for overpayment recovery is made, additional refund and payment cannot be requested any sooner than six months after the initial request.

- 5.18.2 As required by RCW 48.43.005 and 48.43.605, §2.7.1 of the Agreement establishes that Provider may not request payment from Wellpoint unless done in writing and within 24 months after the date the claim was initially denied or payment was made by Wellpoint. When coordination of benefits is involved, §2.7.2 of the Agreement requires that Provider make a request to Wellpoint within thirty (30) months for any additional balances owed. §2.7.3-4 articulate that no additional payment can be requested any sooner than six months after the initial request for payment is made.
- 5.19 Postpartum Contraception. As required by RCW 41.05.430, the Agreement contains no language that requires Provider to only bill using the maternity global billing allowance for postpartum contraception.
- 5.20 Prior Authorization.
- 5.20.1 Wellpoint does not impose different prior authorization standards and criteria for a Covered Service among tiers of Providers, therefore nothing in this Agreement violates RCW 48.43.016(1).
- 5.20.2 As required by RCW 48.43.016(2), the Agreement does not require utilization management review for an initial evaluation and management visit, or for up to six treatment visits for Providers rendering Covered Services involving chiropractic care, physical therapy, occupational therapy, acupuncture and eastern medicine, massage therapy, and speech and hearing therapies. With the exception of RCW 48.43.515(5) for chiropractors, Wellpoint may require a referral or prescription for the therapies listed in this section.
- 5.20.3 As required by RCW 48.43.016(6), limited only to the care described in §5.20.2 of this Amendment, Wellpoint may not deny a claim for such care on the basis of medical necessity, or retroactively refuse payment for those certain visits.
- 5.20.4 As permitted by RCW 48.43.016(7), Wellpoint may deny coverage based on insurance fraud.
- 5.20.5 As required by WAC 284-170-421(5) and WAC 284-43-2050, §2.9 of the Agreement requires Plan to give Provider 60 days' notice before a change to any policy, including but not limited to clinical policies impacting prior authorization requirements, is made. §2.11 of this Amendment addresses how a Provider may obtain and appeal a preauthorization.
- 5.21 Protection of Member Right to Privacy: Confidential Services. As required by RCW 48.43.505, Wellpoint does not ask for a Member, who possesses the right to consent to care, to obtain permission from any other person in order to receive care from Provider. Further, as required by RCW 48.43.505, Wellpoint requires a Member to waive any right to disclosure as a condition of eligibility. The Agreement §3.2 references that the Parties will follow HIPAA regarding protected health information of Members.
- 5.22 Provider Credentialing Application. As required by RCW 48.43.750, the Agreement does not require the carrier to submit credentialing information in any format other than through the state-approved database nor does it identify a period of longer than 90 days to complete a credentialing application review. As required by RCW 48.43.757, §2.10 of this Amendment explains Plan will pay Provider for Covered Services rendered by a provider added to the Agreement as of the date of a completed credentialing application.
- 5.23 Provider/Patient Care. As required by RCW 48.43.510(6)-(7), this Amendment §2.3.2 contains the requires language from WAC 284-170-421(7)(a)-(b) allowing Provider to inform Member about the comparative merits of different health carriers.
- 5.24 Provider Manual. As required by RCW 48.43.055, WAC 284-170-411(4), WAC 284-170-421, and WAC 284-170-480(4), the Parties acknowledge and agree that the provider manual is not incorporated by reference into this Attachment and it not deemed part of the Commercial Business Participation Attachment.
- 5.25 QHP Participation. The Agreement complies with RCW 48.43.775, in that it does not require Provider to accept the Aualifying Health Plan ("QHP") reimbursement rates for all of Wellpoint's other plans.
- 5.26 Record Retention. As required by WAC 284-170-421(8), the Agreement §3.4 addresses records retention by Provider and requires that records be made available to state and federal authorities involved in assessing the quality of care or investigating the grievances or complaints of Members related to confidentiality of medical records.

- 5.27 Telemedicine Payment Parity. This Amendment §2.4 contains the language required by RCW 48.43.735 and WAC 284-170-433.
- 5.28 Temporary Substitution of Contracted Providers. As required by WAC 284-170-380, the Agreement does not restrict Provider from arranging for a substitute for at least 60 days during any calendar year, and Wellpoint will grant an extension if the Provider demonstrates exceptional circumstances require additional time away from Provider's practice.
- 5.29 Tiered Networks. The Agreement does not involve any tiered network, which might require compliance with WAC 284-170-330.
- 5.30 Utilization Review.
- 5.29.1 As required by RCW 48.43.520, Amendment §2.11 addresses how a Provider may obtain preauthorization.
- 5.29.2 As required by RCW 48.43.525, Wellpoint will not retroactively deny coverage for emergency or non-emergency care that was preauthorized.
- 5.29.3 As required by WAC 284-43-2000(5)(g), retrospective review decisions related to this Agreement are based solely on the medical information available at the time the services were rendered by Provider.
- 5.29.4 As required by WAC 284-43-2000(7)(b), all retrospective review determinations must be completed within thirty (30) days of receiving all necessary information.
- 5.31 Withdrawal Management Services.
- 5.30.1 The Agreement does not specify timeframes for substance abuse disorder treatment less than what is specified in RCW 48.43.761(2)(a)(i).
- 5.30.2 The Agreement does not specify timeframes for withdrawal management services less than what is specified in RCW 48.43.761(2)(a)(ii).
- 5.30.3 The Agreement does not contain language that prevents a seamless transfer to an appropriate level of care. Wellpoint may request information from Provider to assist with this seamless transfer, as specified in RCW 48.43.761(2)(b)(ii).

PLAN COMPENSATION SCHEDULE ("PCS") ATTACHMENT

COMMERCIAL

For Covered Services furnished by or on behalf of Provider for a Commercial Business Member enrolled in a product and/or program that is supported by a Network designated in this Agreement. Provider agrees to accept an amount that is the lesser of Eligible Charges or the Wellpoint Commercial Rate, minus applicable Cost Shares, and modified before payment as described below. Provider agrees that this amount, plus applicable Cost Shares, is full compensation for Covered Services.

The "Wellpoint Commercial Rate" is the amount calculated based on the rate or methodology stated below for each service, adjusted as described in the notes, and multiplied by the stated percentage, if applicable. Provider's Wellpoint Commercial Rate is limited to those Service Descriptions and corresponding Provider Type(s) within Provider's Wellpoint Washington, Inc. Plan Compensation Schedule Attachment(s) as of December 31, 2025.

Program: Wellpoint Washington Essential			
Professional Provider Type: Behavioral Health Practitioner			
Service Description	Billing Code	Rate/Methodology	Rate Description
Professional and Technical Services	Applicable CPT/HCPCS codes	Medicare Physician Fee Schedule multiplied by 100%	Per Unit
Part B Drugs and Biologicals	Applicable CPT/HCPCS Codes	Medicare Drug Fee Schedule multiplied by 100%	Per Unit
Laboratory Services	Applicable CPT/HCPCS Codes	Medicare Clinical Laboratory Fee Schedule multiplied by 45%	Per Unit

Program: Wellpoint Washington Essential			
Professional Provider Type: Free Standing Birthing Center			
Service Description	Billing Code	Rate/Methodology	Rate Description
Birthing Center Services	Applicable CPT/HCPCS Codes	\$3,500	Per Case

Program: Wellpoint Washington Essential			
Professional Provider Type: Specialty Physician Group Specialty Physician Individual Specialty Provider Group (Non-MD Or DO) Specialty Provider Individual (Non-MD Or DO)			
Service Description	Billing Code	Rate/Methodology	Rate Description
Professional and Technical Services	Applicable CPT/HCPCS Codes	Medicare Physician Fee Schedule multiplied by 100%	Per Unit
Part B Drugs and Biologicals	Applicable CPT/HCPCS Codes	Medicare Drug Fee Schedule multiplied by 100%	Per Unit
Laboratory Services	Applicable CPT/HCPCS Codes	Medicare Clinical Laboratory Fee Schedule multiplied by 45%	Per Unit
Durable Medical Equipment, Prosthetics, Orthotics, and Supplies	Applicable CPT/HCPCS Codes	Medicare Durable Medical Equipment, Prosthetics/Orthotics, and Supplies Fee Schedule multiplied by 85%	Per Unit
Anesthesia Services	Applicable CPT/HCPCS Codes	Medicare anesthesia conversion factor, Medicare time units, and	Per Unit

		Medicare base units, multiplied by 100%	
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Program: Wellpoint Washington Essential			
Professional Provider Type: Community Mental Health Center			
Service Description	Billing Code	Rate/Methodology	Rate Description
Professional and Technical Services	Applicable CPT/HCPCS Codes	Medicare Physician Fee Schedule multiplied by 100%	Per Unit
Part B Drugs and Biologicals	Applicable CPT/HCPCS Codes	Medicare Drug Fee Schedule multiplied by 100%	Per Unit
Laboratory Services	Applicable CPT/HCPCS Codes	Medicare Clinical Laboratory Fee Schedule multiplied by 45%	Per Unit

Program: Wellpoint Washington Essential			
Professional Provider Type: Federally Qualified Health Center (FQHC)			
Service Description	Billing Code	Rate/Methodology	Rate Description
Professional and Technical Services	Applicable CPT/HCPCS codes	Medicare Physician Fee Schedule multiplied by 100%	Per Unit
Part B Drug and Biologicals	Applicable CPT/HCPCS codes	Medicare Drug Fee Schedule multiplied by 100%	Per Unit
Laboratory Services	Applicable CPT/HCPCS codes	Medicare Clinical Laboratory Fee Schedule multiplied by 45%	Per Unit
Durable Medical Equipment, Prosthetics, Orthotics and Supplies	Applicable CPT/HCPCS codes	Medicare Durable Medical Equipment, Prosthetics/Orthotics, and Supplies Fee Schedule multiplied by 85%	Per Unit

Program: Wellpoint Washington Essential			
Professional Provider Type: Rural Health Clinic (RHC)			
Service Description	Billing Code	Rate/Methodology	Rate Description
Professional and Technical Services	Applicable CPT/HCPCS codes	Medicare Physician Fee Schedule multiplied by 100%	Per Unit
Part B Drug and Biologicals	Applicable CPT/HCPCS codes	Medicare Drug Fee Schedule multiplied by 100%	Per Unit
Laboratory Services	Applicable CPT/HCPCS codes	Medicare Clinical Laboratory Fee Schedule multiplied by 45%	Per Unit
Durable Medical Equipment, Prosthetics, Orthotics and Supplies	Applicable CPT/HCPCS codes	Medicare Durable Medical Equipment, Prosthetics/Orthotics, and Supplies Fee Schedule multiplied by 85%	Per Unit

Program: Wellpoint Washington Essential			
Professional Provider Type: Primary Care Physician or Primary Care Provider (PCP)			
Service Description	Billing Code	Rate/Methodology	Rate Description

Professional and Technical Services	Applicable CPT/HCPCS codes	Medicare Physician Fee Schedule multiplied by 100%	Per Unit
Part B Drug and Biologicals	Applicable CPT/HCPCS codes	Medicare Drug Fee Schedule multiplied by 100%	Per Unit
Laboratory Services	Applicable CPT/HCPCS codes	Medicare Clinical Laboratory Fee Schedule multiplied by 45%	Per Unit
Durable Medical Equipment, Prosthetics, Orthotics and Supplies	Applicable CPT/HCPCS codes	Medicare Durable Medical Equipment, Prosthetics/Orthotics, and Supplies Fee Schedule multiplied by 85%	Per Unit

Program: Wellpoint Washington Essential			
Professional Provider Type: Radiology Imaging Center			
Service Description	Billing Code	Rate/Methodology	Rate Description
Professional and Technical Services	Applicable CPT/HCPCS codes	Medicare Physician Fee Schedule multiplied by 100%	Per Unit
Part B Drug and Biologicals	Applicable CPT/HCPCS codes	Medicare Drug Fee Schedule multiplied by 100%	Per Unit
Laboratory Services	Applicable CPT/HCPCS codes	Medicare Clinical Laboratory Fee Schedule multiplied by 45%	Per Unit

Program: Wellpoint Washington Essential			
Professional Provider Type: Physical/Occupational/Speech Therapy (PT/OT/ST) Respiratory Therapy			
Service Description	Billing Code	Rate/Methodology	Rate Description
All Therapy Services (Physical, Occupational, Respiratory, Speech and Therapy)	Applicable CPT/HCPCS codes	Medicare Physician Fee Schedule multiplied by 100%	Per Unit

Program: Wellpoint Washington Essential			
Professional Provider Type: Urgent Care Center (UCC)			
Service Description	Billing Code	Rate/Methodology	Rate Description
Professional and Technical Services	Applicable CPT/HCPCS codes	Medicare Physician Fee Schedule multiplied by 100%	Per Unit
Part B Drug and Biologicals	Applicable CPT/HCPCS codes	Medicare Drug Fee Schedule multiplied by 100%	Per Unit
Laboratory Services	Applicable CPT/HCPCS codes	Medicare Clinical Laboratory Fee Schedule multiplied by 45%	Per Unit
Durable Medical Equipment, Prosthetics, Orthotics and Supplies	Applicable CPT/HCPCS codes	Medicare Durable Medical Equipment, Prosthetics/Orthotics, and Supplies Fee Schedule multiplied by 85%	Per Unit

Program: Wellpoint Washington Essential			
Professional Provider Type: Sleep Clinics			

Service Description	Billing Code	Rate/Methodology	Rate Description
Professional and Technical Services	Applicable CPT/HCPSC codes	Medicare Physician Fee Schedule multiplied by 100%	Per Unit
Part B Drug and Biologicals	Applicable CPT/HCPSC codes	Medicare Drug Fee Schedule multiplied by 100%	Per Unit
Laboratory Services	Applicable CPT/HCPSC codes	Medicare Clinical Laboratory Fee Schedule multiplied by 45%	Per Unit
Durable Medical Equipment, Prosthetics, Orthotics and Supplies	Applicable CPT/HCPSC codes	Medicare Durable Medical Equipment, Prosthetics/Orthotics, and Supplies Fee Schedule multiplied by 85%	Per Unit

Program: Wellpoint Washington Essential			
Professional Provider Type: Audiologist			
Service Description	Billing Code	Rate/Methodology	Rate Description
Professional and Technical Services	Applicable CPT/HCPSC codes	Medicare Physician Fee Schedule multiplied by 100%	Per Unit
Durable Medical Equipment, Prosthetics, Orthotics and Supplies	Applicable CPT/HCPSC codes	Medicare Durable Medical Equipment, Prosthetics/Orthotics, and Supplies Fee Schedule multiplied by 85%	Per Unit

Program: Wellpoint Washington Essential			
Professional Provider Type: Registered Dietician, Nutritionist			
Service Description	Billing Code	Rate/Methodology	Rate Description
Nutrition/Dietitian Services	Applicable CPT/HCPSC codes	Medicare Physician Fee Schedule multiplied by 100%	Per Unit

For physician types only: Plan shall use the service location Zip Code, the date of service, and the place of service, as billed by Provider, to determine the applicable rate.

For physician types only: Plan shall not compensate Provider for Medicare Merit-Based Incentive Payments System adjustments, Medicare Health Professional Shortage Area adjustments, or other future similar Medicare adjustments.

When compensation is based on Medicare payment system, rates, or fee schedules, Plan and Provider shall consider Medicare interim amounts, including but not limited to, indirect medical education, disproportionate share, outliers, per diems, percent of charge, and all-inclusive rates, as final and Plan shall not adjust Provider's compensation through a settlement, even if Medicare adjusts its compensation to Provider based on a settlement.

When compensation is based on Medicare payment systems, rates, or fee schedules, Plan shall compensate Provider using the relevant logic and data (for example: calculations, payment groupings, or federal and provider-specific factors) that are available in Plan's systems at the time Plan processes the Provider's Claim. Plan shall not retroactively adjust Provider's compensation for previously processed Claims to reconcile any difference with the logic and data being used by Medicare on the same processing date for the same date of service. In addition, Plan shall not retroactively adjust Provider's compensation for previously processed claims to reflect Medicare's retroactive updates or changes to logic and data. Provider shall not request adjustments solely based on these differences, updates, or changes.

When compensation is based on External Sources (including CMS for Medicare), the Plan shall apply the provisions of those Wellpoint provider manual(s), policies, programs, and procedures established and implemented by the Plan for each Network even if those provisions differ from the External Sources.